

26SMCV02381 26SMCV02381

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26SMCV02381 Hearing Date: September 28, 2026 Dept: P

Tentative

Ruling

Danny

Suleminian v. PGB Holdings, LLC, et al., Case No. 26SMCV02381

PGB

Holdings and Peter Pooya Bakhtiari's Motion to Set Aside Default

Hearing

Date: September 28, 2026

Background

Plaintiff

Danny Suleminian sues Defendants PGB Holdings, Peter Pooya Bakhtiari, Sassan Construction, Inc., and Sassan Salehipour for negligence, private nuisance, trespass, and strict liability arising out of Defendants' construction work on Suleminian's neighbor's property. (Complaint, ¶ 23.) Suleminian alleges that Defendants' work caused structural damage to his property, including cracks in perimeter walls, stucco, and fencing. (Id. at ¶ 24.)

On April

28, 2026, Suleminian filed the complaint.

On August

6, 2026, Suleminian filed proof of service on all defendants and entered default judgment against all defendants.

On August

28, 2026, PGB Holdings and Peter Pooya Bakhtiari (collectively "PGB") moved to set aside default.

PGB moves

to set aside default based on excusable mistake or surprise. PGB argues that it received the complaint and summons on May 7, 2026, but was not able to obtain sufficient information to determine if service was code compliant from PGB or Suleminian.

PGB argues that it delayed filing a response in case it needed to move to quash service, but received no response from Suleminian for months, until Suleminian suddenly filed proof of service and entered default on August 6, 2026. Defendants submit their proposed demurrer and motion to strike concurrently with this motion.

Legal

Standard- Motion to Set Aside Default

CCP section 473(b) provides, in relevant part, that "the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Id.)

Discussion

Timeliness

PGB

brought this motion on August 28, 2026, less than six months after Suleminian entered default on August 6, 2026. This motion is timely.

Surprise

PGB

submits evidence that it diligently contacted Suleminian's counsel to obtain proof of service between the time it received the complaint and the time

Suleminian filed the proof of service and entry of default with the Court. (Su Decl., ¶ 2.) PGB's evidence shows that it did not make a general appearance because it believed service was improper. (Id. at ¶ 6.) The fact that Suleminian filed the proof of service and entered default simultaneously supports PGB's contention that it was surprised by the entry of default, especially since it had been in communication with staff at Suleminian's attorney's office. (See Su Decl., Exhibit 1.)

This evidence is sufficient to show that PGB's failure to respond timely was due to surprise. Suleminian's entry of default is set aside.

Conclusion

PGB's Motion to Set Aside Default is GRANTED.

PGB is to file a responsive pleading within ten (10) days.